

NEWS & COMMENTARY

Kansas Town Uses License Plate Readers to Go After Man Who Wrote Op-Ed

Targeting followed opinion piece critical of town's police and anonymously posted anti-ICE fliers



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Police in Lenexa, Kansas used automated license plate reader (ALPR) technology to pursue a man who [wrote a critical op-ed](#) about the police department, according to reporting by Kansas public radio station KCUR. This is a rare public example of exactly the kind of abuse that we've long warned against when it comes to [mass-surveillance systems](#) like [license plate readers](#). It also comes on the heels of reports about apparent misuse of license plate databases by ICE agents in Minnesota not for legitimate law enforcement purposes but [to intimidate observers and protesters](#), and of a woman who was [falsely accused of theft](#) based on data from license plate readers.

The [op-ed](#) published by the Kansas man, Canyen Ashworth, was critical of local ICE operations and the role of Lenexa police in them. The same day that piece ran, Lenexa police began to investigate Ashworth, according to internal emails obtained by KCUR. They quickly tied him to an unidentified suspect the police were looking for who had several days earlier put four posters up around town showing a picture of an ICE agent and the words "remember when we killed fascists." The police alleged that the unidentified "Paper Hanger" had violated an unspecified city ordinance, and the posters were removed.

The Paper Hanger's arguably aggressive message was nonetheless speech protected by the First Amendment. And while government officials may regulate constitutionally protected speech through "time, place, and manner" restrictions, they can't do so selectively based on the content of the messages. KCUR reports that in Lenexa, "Posters about lost pets and community events were generally not removed."

In fact, the town's mayor later told KCUR that the town had no formal policy regarding posters on city property.

City and police officials claimed that they were targeting the Paper Hanger because the glue he used had the potential to damage city property. On the basis of this great crime, the police began using license plate readers to track Ashworth's movements around town, and several weeks after his op-ed, the police chief emailed patrol officers to announce that "A suspect has been developed in the case of the City Center Posters" and announce a "be on the lookout for" (BOLO) alert for Ashworth.

Perhaps most ominously, when issuing the BOLO the chief declared "This is MYOC," meaning "make your own case" — which in turn meant essentially, "there is no arrest warrant for him so look for any reason to stop him" and, as the deputy police chief at the time put it, "You need to build your own probable cause, your own reasonable suspicion."

As my ACLU colleague and head of the Kansas ACLU Micah Kubic put it, issuing a BOLO on someone for putting up posters is "both a rejection of the First Amendment, and a really ridiculous misuse of resources."

Compared to the blatant targeting of people for their speech and/or political opposition that we've been seeing lately from the Trump Administration, this case may look small. But it was [scary enough](#) for Ashworth. And it's a particularly clear example of the abusive dynamic that mass-surveillance systems always end up falling into:

1. Target someone who the authorities dislike but have no evidence has done anything wrong.
2. Fire up powerful surveillance technologies that have been sold to the public as a way to stop serious, dramatic crimes and keep the public safe.
3. Use those technologies to watch the disfavored person in the hopes of drumming up something that they can be charged with, even to the point of scraping the bottom of the barrel and going after something like "damaging glue use."

We've seen plenty of this "[show me the man, I'll find you the crime](#)" kind of abuse at the hands of the Trump Administration. But this story is a reminder that such abuse can rear its head in towns across the nation — small, medium, or large. And when it does, license plate reading programs are a natural tool for the authorities to turn to.

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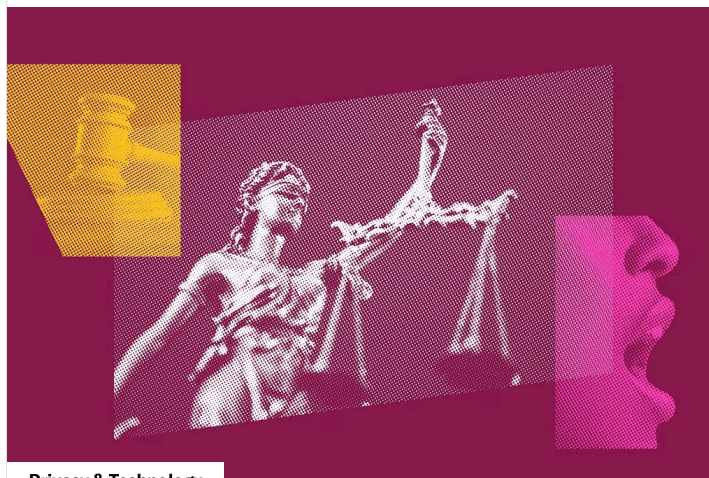
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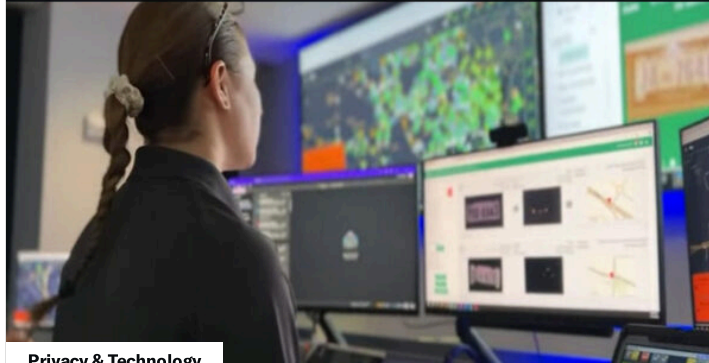
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By: Lauren Yu, Nathan Freed Wessler

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